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Case Number: 24STCV33776 Hearing Date: July 9, 2026 Dept: 507

Tentative

Ruling

Judge Nicholas

F. Daum, Department 507

HEARING

DATE: July 9, 2026 TRIAL DATE: NOT SET

CASE: Real Time Recs Inc. v. Norman S. Pineda

CASE

NO.: 24STCV33776

DEMURRER TO SECOND AMENDED

CROSS-COMPLAINT WITH MOTION TO STRIKE

MOVING

PARTY: Cross-Defendants Real Time Recs, Inc.

("RTR"), Anthony Martinez, Paul Najera, and Justin Lo.

RESPONDING

PARTY(S): Cross-Complainant

Norman S. Pineda

TENTATIVE RULING:

On

its own motion, the Court reconsiders the November 20, 2025 order sustaining the Demurrer to the First Amended Cross-Complaint. Upon reconsideration of the prior order, the Court concludes that the denial of leave to amend was in error. The Court grants Cross-Complainant leave to amend as to all causes of action, and will not sustain the demurrer simply because Cross-Complainant has amended any of the cross-claims in the Second Amended Cross Complaint.

Thus, the Court addresses the Demurrer to the Second Amended Cross Complaint on the merits. Having done so, the Demurrer is SUSTAINED with leave to amend as to the fourth, fifth, sixth, and eighth causes of action and otherwise OVERRULED.

Pineda shall have thirty (30) days leave to amend.

Cross-Defendants' Motion to Strike is MOOT.

Moving Parties to give notice.

BACKGROUND

This is a corporate dispute between shareholders.

DISCUSSION:

Demurrer to Second Amended Cross-Complaint

A. The Demurrer Cannot Be Sustained As To Certain Causes Of Action Simply Because A Prior, Now-Disqualified Judicial Officer Denied Leave To Amend As To Those Claims

Resolving this demurrer first requires dealing with a fairly complicated procedural issue. Below, the Court does so. The Court concludes that the demurrer should not be sustained on the grounds that Cross-Complainant amended the Cross-Complaint following a prior denial of leave to amend.

a. Procedural History

An

initial Cross-Complaint was filed on April 21, 2025. Cross-Defendants demurred to that Cross-Complaint, but Cross-Complainants mooted the demurrer by filing a First Amended Cross-Complaint. Cross-Defendants then demurred again, on September 23, 2025, to the First Amended Cross-Complaint. The demurrer to the First Amended Cross-Complaint raised largely, but not entirely, similar grounds to those raised in the demurrer to the initial Cross-Complaint.

On

November 20, another judicial officer of this Court issued a minute order sustaining the demurrer as to the first eight causes of action with respect to RTR, and as to the second, fourth through sixth, and eighth causes of action as to Lo.

Critically, the November 20 order did not grant leave to amend as to any of the causes of action as to which the Court sustained the demurrer. Leave to amend was granted only as to the first cause of action for breach of written contract, third cause of action for breach of the covenant of good faith and fair dealing, and seventh cause of action for breach of fiduciary duty as to Lo, and the ninth cause of action for declaratory relief as to both parties. Put differently, the November 20 order granted leave to amend only as to those causes of action to which the demurrer was not sustained in the first place. .

Following

that ruling, the former judicial officer was disqualified based on a preemptory challenge pursuant to Code of Civil Procedure section 170.6. The case was then reassigned to this judicial officer.

Next,

and despite the prior judicial officer's ruling, Cross-Complainant filed a Second Amended Cross-Complaint that included amended pleadings as to the first eight causes of action for RTR, and the second, fourth through sixth, and eighth causes of action for Lo.

Cross-Defendant's

primary argument on demurrer is that these causes of action are now invalid because

a demurrer was already sustained as to them without leave to amend.

b. Legal Analysis Re:
Reconsideration

This

record forces this Court to confront the following questions. First, was the prior denial of leave to amend by a separate judicial officer in error? Second, even if the prior denial of leave to amend was in error, can this Court reconsider it?

This

Court answers “yes” to both questions.

This

judicial officer believes that the prior denial of leave to amend was clearly erroneous. “Denial of leave to amend constitutes an abuse of discretion unless the complaint shows on its face it is incapable of amendment. [Citation.] Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given.” (Angie M. v. Superior Court (1995) 37 Cal.App.4th 1217, 1227.)

Here,

no demurrer had previously been sustained.

The November 20 ruling was the first time the Court addressed the merits of the pleading. Put differently, leave to amend was denied without giving Cross-Complainant any opportunity whatsoever to improve his pleading. Moreover, nothing suggests that amendment would have been impossible as a matter of law. Before the prior ruling, Defendants raised primarily, if not exclusively, issues involving the sufficiency of pleadings. The prior judicial officer sustained the demurrer on that basis, and did not identify any area in which amendment would be futile. While Cross-Defendant may have not pled sufficient facts to support his initial cross-claims, nothing suggests that it was a legal impossibility for Cross-Complainant to do a better job of pleading.

Thus,

from any angle, the fundamental rule requiring liberality in permitting

amendment was not complied with. While this Court does not lightly reconsider the conclusions of another judicial officer, it appears clear and certain that leave to amend should have been granted.

Generally, of course, the Court may, on its own motion, reconsider its prior rulings upon notice to the affected parties and an opportunity to be heard. (*Le Francois v. Goel*, (2005) 35 Cal.4th 1094, 1107-1109.) Here, notice and opportunity was provided. The parties briefed the reconsideration issue in connection with the demurrer itself, and also because this Court asked for supplemental briefing on the reconsideration issue.[1] If the November 20 ruling had been made by this judicial officer, the Court could and would simply reconsider it on its own motion.

Things are not quite so simple, however. The prior ruling was made by a co-equal judicial officer. This Court does not and cannot review or reverse the rulings of co-equal judicial officers, except in some narrow circumstances. (*Williamson v. Mazda Motor of America, Inc.* (2012) 212 Cal.App.4th 449, 454-55.)

But this Court can review a prior co-equal judge's rulings when the prior judge is "unavailable." As the Court of Appeal has explained, "An established exception to the general rule limiting reconsideration is that where the judge who made the initial ruling is unavailable to reconsider the motion, a different judge may entertain the reconsideration motion. This exception reconciles the jurisdiction of a trial court to reconsider and correct its erroneous interim rulings to achieve justice with the general rule's recognition of the comity between judges of a trial court." (*Ziller Elecs. Lab GmbH v. Superior Ct.* (1988) 206 Cal.App.3d 1222, 1232 [citations omitted].) A judicial officer, like the one at issue here, who was peremptorily disqualified pursuant to Code of Civil Procedure section 170.6 is also clearly "unavailable" for these purposes such that a subsequent judicial officer may reconsider the disqualified judge's rulings. (*Geddes v. Superior Court* (2005) 126 Cal.App.4th 417, 425-26 ["Where a judge has been disqualified, the newly-assigned judge may review the ruling of the disqualified judge because the disqualified judge, having no authority to rule, is 'unavailable.' Any comity concern

that ordinarily would preclude the second judge from reviewing the first judge's ruling would not prevent the court from making rulings necessary to resolve the matter."].)

Accordingly,
this Court does have the authority to reconsider, on its own motion, the November 20 ruling from the prior judicial officer.

In
supplemental briefing, Cross-Defendants argue to the contrary. They claim that this Court can only reconsider the rulings of a previously-disqualified prior judge where there is "good cause" under Code of Civil Procedure section 170.3 subdivision (b)(4). There are two problems with that argument.
First, even if Cross-Defendants were right and the "good cause" standard of Section 170.3 did apply, that standard is met. Correcting clear legal error is good cause. Cross-Defendants cite no caselaw suggesting that correcting clear legal error is not "good cause," and the Court is aware of none.

Second,
section 170.3 subdivision (b)(4), the provision Cross-Defendants cite, deals with a different issue. Section 170.3, unlike section 170.6, deals with disqualifications for cause. When a disqualification for cause of a prior judge has occurred, section 170.3 subdivision (b)(4) allows the newer judge to "set aside" former rulings of the prior judge for "good cause." "Set aside" does not merely mean to "reconsider." It means that prior rulings of the judge, regardless of the merits, may be voidable or void (most commonly, because the ruling dealt with a matter that was the subject of the for-cause disqualification). (Conservatorship of Tedesco (2023) 91 Cal.App.5th 285, 305 [rulings of disqualified judge voidable though not set aside]; Hayward v. Superior Court (2016) 2 Cal.App.5th 10, 17 [temporary judge's rulings void and vacated where judge knew of grounds for disqualification before issuing rulings].) That is simply a different issue from the Court's general power to reconsider rulings of an "unavailable" judicial officer. Under clear law, the Court has the ability to reconsider an unavailable prior judicial officers' rulings, and under clear law the prior judicial officer here is unavailable. Accordingly, Cross-Defendants' argument does not alter the Court's conclusions.

Thus,
leave to amend should have been granted, and, on reconsideration, the Court

grants leave to amend. (Angie M. v. Superior Court (1995) 37 Cal.App.4th 1217, 1227.) Because an amended pleading has already been filed, the Court will consider it. Put differently, in the unusual circumstances here, the Court rejects the argument that the demurrer should be sustained as to the first eight causes of action for RTR, and the second, fourth through sixth, and eighth causes of action for Lo merely because the prior judicial officer sustained a demurrer as to those causes of action without leave to amend.

B. Reverse Veil Piercing

Beyond its arguments about the November 20 ruling, RTR has another primary contention. It argues that it cannot be liable on any cause of action for any of the conduct by the individual Cross-Defendants. It argues that Pineda has not properly alleged a valid alter ego theory, meaning that it cannot be held liable as the “alter ego” for individuals. The Court disagrees.

The alter ego doctrine is “used to prevent a corporation from using its statutory separate corporate form as a shield from liability only where to recognize its corporate status would defeat the rights and equities of third parties[.]” (Communist Party v. 522 Valencia, Inc. (1995) 35 Cal.App.4th 980, 994.) “In general, the two requirements for applying the alter ego doctrine are that (1) there is such a unity of interest and ownership between the corporation and the individual or organization controlling it that their separate personalities no longer exist, and (2) failure to disregard the corporate entity would sanction a fraud or promote injustice.” (Webber v. Inland Empire Invs. (1999) 74 Cal.App.4th 884, 900-901.)

Pineda alleges that RTR is the alter ego of the individual Cross-Defendants. Thus, alleges Pineda, RTR can be held liable for individual shareholders and directors’ actions against Pineda. (SAXC ¶ 31.)

This is a variant of alter ego liability known as “reverse veil piercing.” The Court of Appeal explained the theory thus:

The alter ego doctrine

traditionally is applied to pierce the corporate veil so that a shareholder may be held liable for the debts or conduct of the corporation. Some courts recognize the corporate veil may be pierced in reverse so that a corporation may be held liable for the debts or conduct of a shareholder. [Citations]. “The typical ‘reverse pierce’ case involves a corporate insider, or someone claiming through such individual, attempting to pierce the corporate veil from within so that the corporate entity and the individual will be considered one and the same.” [Citations]. This is sometimes called “[i]nside reverse piercing.” [Citations].

A variant of the reverse

piercing theory, sometimes called “outside” or “third party” reverse piercing, occurs when a third party outsider seeks to reach corporate assets to satisfy claims against an individual shareholder. [Citations].

(Postal

Instant Press. v. Kaswa Corp. (2008) 162 Cal.App.4th 1510, 1518.)

RTR

argues that Postal Instant Press forbids all varieties of reverse veil piercing. It does not. Addressing the topic as a matter of first impression, the Court of Appeal specifically and exclusively rejected the doctrine of outside reverse piercing. Postal Instant Press reasoned that claims for conversion and fraudulent conveyance operate to protect third-party judgment creditors from fraudulent transfers by individuals of assets to the corporation, without the “unacceptable shortcut” of a postjudgment motion. (Id. at 1522-23.)

Here, by contrast, Pineda asserts

alter ego under an inside reverse piercing theory. Pineda’s theory is very different than the kind of fraudulent-transfer-of-assets theory by a shareholder that was at issue in Postal Instant Press. Pineda alleges that the Cross-Defendants were corporate officers and directors who were functionally in control of RTR, and used RTR to conceal their own activity and to implement a scheme to seize Pineda’s 20% shareholder interest for nothing.

(E.g., SAXC ¶¶ 1-5, 49.) Whatever

the merits of that theory (and, frankly, the pleading of the theory in the Second Amended Cross Complaint is not extremely clear) it is a very different situation from that analyzed in Postal Instant Press. At least one California case supports proceeding on an inside-reverse-piercing

theory in somewhat similar circumstances.

(Taylor v. Newton (1953) 117 Cal.App.2d 752, 761 [allowing a corporation to be held liable on a judgment against the corporation's sole stockholder and insider].) In short, and particularly given the equitable and highly fact-specific nature of veil-piercing and the alter-ego doctrine, the Court concludes that, at least at the pleadings stage, there is good reason to allow Pineda to develop facts that might support, in equity, a claim for inside reverse veil piercing—if Pineda can in fact show that the use of the corporate form was inequitable.

RTR also argues that Pineda has not alleged sufficient facts to support an alter ego theory. The Court disagrees. A party claiming the alter ego doctrine need only allege “ultimate rather than evidentiary facts.” (Rutherford Holdings LLC v. Plaza Del Rey (2014) 223 Cal.App.4th 221, 236.) “[L]ess particularity [of pleading] is required where the defendant may be assumed to possess knowledge of the facts at least equal, if not superior, to that possessed by the plaintiff.” (Id.) Pineda alleges the ultimate facts of commingling funds, undercapitalization, and disregard of corporate formalities. (SAXC ¶ 15.) Pineda also alleges that maintaining the separation of the corporate form would lead to an inequitable result. (SAXC p.9:20-22.) While Pineda’s pleading is far from perfect, it is sufficient.

RTR’s demurrer to the first and third causes of action is premised entirely on the absence of alter ego liability. Thus, the Court finds that those causes of action are not defective as to RTR.

C. Second Cause of Action: Breach of Oral Contract

Cross-Defendants also demur to the second cause of action for breach of oral contract. They argue that this cause of action is precluded by the terms of the Shareholder Agreement governing RTR. Again, the Court disagrees.

The Second Amended Cross-Complaint alleges that, subsequent to the formation of RTR and execution of the shareholder agreement, the shareholders mutually agreed orally to compensate Pineda for services as Chief Marketing and Client Relations Officer. (SAXC ¶ 65.) Pineda alleges that the shareholders voted to approve Pineda’s

compensation by a supermajority, pursuant to section 1.07 of the Shareholder Agreement. (SAXC ¶ 66.) Pineda claims he was not paid what was owed. (SAXC ¶ 67.)

Cross-Defendants

contend that the integration clause in section 5.01 of the Shareholder Agreement precludes any oral contract. It does not. This section states:

This Agreement contains the entire understanding among the Shareholders and supersedes any prior written or oral agreements between them respecting the subject matter contained herein. There are no representations, agreements, arrangements, or understandings, oral or written, between and among the Shareholders relating to the subject matter of this Agreement that are not fully expressed herein.

(SAXC Exh. A. § 5.01.) This section does not, by its plain language, preclude the formation of a subsequent oral contract. That is what is alleged here.

Cross-Defendants also claim that the pleadings do not allege the required supermajority vote to authorize Pineda's compensation. Pineda alleges exactly that at paragraph 66. Although Cross-Defendants argue that this is a matter "presumably within his own knowledge" such that it may not be alleged on information and belief, they offer no basis to support that conclusion. The Court therefore finds that the second cause of action is not defective.

D. Fourth Cause of Action: Intentional Misrepresentation

Cross-Defendants contend that the fourth cause of action does not plead fraud with the required specificity. Here, the Court agrees.

"The elements of fraud that will lead to a tort action are: (a) misrepresentation; (b) knowledge of falsity; (c) intent to defraud, i.e., to induce reliance; (d) justifiable reliance; and (e) resulting damage. (*Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 974.) Every element of the cause of action for fraud must be alleged in the proper manner and the facts

constituting the fraud must be alleged with sufficient specificity to allow defendant[s] to understand fully the nature of the charge made. (Stansfield v. Starkey (1990) 220 Cal.App.3d 59, 73.) “This particularity requirement necessitates pleading facts which show how, when, where, to whom, and by what means the representations were tendered.” (Ibid.) “[G]eneral and conclusory allegations do not suffice.” (Lazar v. Superior Court (1996) 12 Cal.4th 631, 645.)

Here, although Pineda alleges a range of dates when putative misrepresentations occurred across a variety of media (see SAXC ¶¶ 79-82), he does not actually explain which representation was made by which individual on any given occasion. It is not reasonably possible, in the Court’s view, to reconstitute the alleged fraud from the pleading. Pineda’s shotgun pleading runs contrary to the purpose of the specificity requirement. Moreover, it does cure the deficiencies identified by the prior judicial officer in the November 20, 2025 ruling.

E. Fifth Cause of Action: Negligent Misrepresentation

Similarly, Cross-Defendants contend that the fifth cause of action does not plead negligent misrepresentation with sufficient specificity. For essentially identical reasons as to the fourth cause of action, the Court agrees.

“Negligent misrepresentation requires an assertion of fact, falsity of that assertion, and the tortfeasor’s lack of reasonable grounds for believing the assertion to be true. It also requires the tortfeasor’s intent to induce reliance, justifiable reliance by the person to whom the false assertion of fact was made, and damages to that person. An implied assertion of fact is ‘not enough’ to support liability.” (SI 59 LLC v. Variel Warner Ventures, LLC (2018) 29 Cal.App.5th 146, 154.) Negligent misrepresentation must be pled with specific allegations. (See Caldo v. Owens-Illinois, Inc. (2004) 125 Cal.App.4th 513, 520.) A claim for negligent misrepresentation therefore must, as with a fraud claim, allege “facts which show how, when, where, to whom, and by what means the representations were tendered.” (Stansfield v. Starkey (1990) 220 Cal.App.3d 59, 73.)

The fifth cause of action rests on

substantively identical allegations as the fourth cause of action. (SAXC ¶¶ 91-95.) For the reasons just discussed, these allegations are insufficiently specific.

F. Sixth Cause of Action:

Negligence

Cross-Defendants demur to the sixth cause of action for negligence. They argue this claim is barred by the economic loss rule. The Court agrees.

“[T]here is no liability in tort for economic loss caused by negligence in the performance or negotiation of a contract between the parties.” (Sheen v. Wells Fargo Bank, N.A. (2022) 12 Cal.5th 905, 923.) This rule bars negligence claims sounding in disappointed contractual expectations unless the party “can demonstrate harm above and beyond a broken contractual promise.” (Rattagan v. Uber Technologies, Inc. (2024) 17 Cal.5th 1, 20.) Rattagan recognizes an exception to this rule where the defendant’s conduct violated a duty independent of the rights and duties under the contract, causing injury not reasonably contemplated by the parties at the time of contract formation. (Id. at 20-21.)

Pineda contends in opposition that he has alleged a duty of care created by a “special relationship” between the parties. But the “special relationship” exception pertains to a non-party to the contract who is injured by the negligent performance of a contracting party’s duty. (Southern California Gas Leak Cases (2019) 7 Cal.5th 931, 400.) But here, Pineda is not a stranger to the contracts alleged. As he himself alleges, he is a party. The economic loss rule applies.

G. Seventh Cause of Action: Breach of Fiduciary Duty

The individual Cross-Defendants demur to the seventh cause of action for breach of fiduciary duty for failure to state a claim. Cross-Defendants contend that this cause of action asserts a breach in their fiduciary duties as shareholders. Not so. The Second Amended Cross-Complaint also alleges fiduciary duties in their capacities as directors and officers of the corporation. (SAXC ¶ 112.) It is true that shareholders do not owe a fiduciary duty to each other by

virtue of the shareholder relationship alone. (Persson v. Smart Inventions Inc. (2005) 125 Cal.App.4th 1141, 1156.) However, simply because an officer or director is also a shareholder does not mean the officer or director loses fiduciary duties he or she might have to other shareholders. (See, e.g., Corp. Code § 309.) The Court rejects this argument.

H. Eighth Cause of Action: Quantum Meruit

Cross-Defendants

demur to the eighth cause of action for quantum meruit as inadequately pled. The Court agrees.

A

claim for quantum meruit does not lie where the parties have an actual agreement governing compensation. (Hedging Concepts, Inc. v. First Alliance Mortgage Co. (1996) 41 Cal.App.4th 1410, 1419.) That is the case here, as Pineda himself alleges. The pleadings allege two contracts governing compensation: the Shareholder Agreement, which prohibits any compensation for services to the corporation except when authorized by a supermajority vote of the shareholders (SAXC Exh. A § 1.07), and an alleged oral contract authorized by supermajority vote. (SAXC ¶ 66.) Because the existence of the Shareholder Agreement, which addresses Pineda's compensation, is not disputed, Pineda cannot assert a quantum meruit theory in the alternative.

I. Ninth Cause of Action:
Declaratory Relief

Cross-Defendants demur to the ninth cause of action for declaratory relief. This cause of action is permitted, given the separate allegations of the first and seventh causes of action. The Court therefore overrules the demurrer.

To state a claim for declaratory relief, a party must allege (1) a proper subject for declaratory relief, and (2) an actual controversy involving justiciable questions relating to the party's rights or obligations. (Jolley v. Chase Home Finance, LLC (2013) 213 Cal.App.4th 872, 909.)

Pineda seeks a declaration establishing that he is a 20% shareholder of RTR and retains all shareholder

rights under RTR's bylaws and California law, that any attempt to divest or reduce his interest is void without a supermajority vote, and he is entitled to access corporate records, vote on matters before the board and shareholders, and share in any financial benefits or proceeds derived from RTR's operations. (SAXC ¶ 130.) If Pineda prevails on the first and seventh causes of action, he may be entitled to that declaratory relief.

Since the Court has overruled the demurrer as to those two causes of action, it also overrules the demurrer as to the ninth cause of action.

J. Leave to Amend

When

a demurrer is sustained, the Court determines whether there is a reasonable possibility that the defect can be cured by amendment. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318). When a plaintiff "has pleaded the general set of facts upon which his cause of action is based," the court should give the plaintiff an opportunity to amend his complaint, since plaintiff should not "be deprived of his right to maintain his action on the ground that his pleadings were defective for lack of particulars." (*Reed v. Norman* (1957) 152 Cal.App.2d 892, 900.) Accordingly, California law imposes the burden on the plaintiffs to demonstrate the manner in which they can amend their pleadings to state their claims against a defendant. (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349.) "Denial of leave to amend constitutes an abuse of discretion unless the complaint shows on its face it is incapable of amendment. [Citation.] Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given." (*Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227.)

Here,

the Court defers to the strong presumption of liberal amendments and grants Pineda a final opportunity to amend his pleadings.

Meet

and Confer

Before

filing a demurrer, the demurring party shall meet and confer in person or by telephone or videoconference with the party who has filed the pleading subject to the demurrer and file a declaration detailing their meet and confer

efforts. (Code Civ. Proc., § 430.41(a).) However, an insufficient meet and confer process is not grounds to overrule or sustain a demurrer. (Code Civ. Proc., § 430.41(a)(4).)

The

Declaration of Samuel E. Chilakos in support of the demurrer states that counsel for the parties met and conferred telephonically on February 5, 2026. (Chilakos Decl. ¶ 2.) The parties were unable to resolve this dispute. (Id.) This is sufficient.

Motion
to Strike

Because the Court has sustained portions of the demurrer with leave to amend, the Motion to Strike is MOOT.

CONCLUSION:

On its own motion, the Court reconsiders the November 20, 2025 order sustaining the Demurrer to the First Amended Cross-Complaint. Upon reconsideration of the prior order, the Court concludes that the denial of leave to amend was in error. The Court grants Cross-Complainant leave to amend as to all causes of action, and will not sustain the demurrer simply because Cross-Complainant has amended any of the cross-claims in the Second Amended Cross Complaint.

Thus, the Court addresses the Demurrer to the Second Amended Cross Complaint on the merits.

Having done so, the Demurrer is SUSTAINED with leave to amend as to the fourth, fifth, sixth, and eighth causes of action and otherwise OVERRULED.

Pineda shall have thirty (30) days leave to amend.

Cross-Defendants' Motion to Strike is MOOT.

Moving Parties to give notice.

IT IS

SO ORDERED.

Dated: July 9, 2026 _____

Nicholas

F. Daum

Judge

of the Superior Court

Any party may submit on the tentative ruling by contacting the courtroom via email at by no later than 4:00 p.m. the day before the hearing. All interested parties must be copied on the email. It should be noted that if you submit on a tentative ruling the court will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not adopt the tentative, and may issue an order which modifies the tentative ruling in whole or in part.

[1] This Court sought and obtained supplemental briefing from the parties as to four issues: (1) Whether this judicial officer has the power to reconsider the prior order on demurrer issued by a separate and co-equal judicial officer, even assuming the prior order was legally erroneous; (2) whether even if this Court lacks the power to correct or reconsider the prior order, it retains the power to resolve ambiguities in the prior order; (3) whether the Court should reconsider or resolve inconsistencies in the prior order, particularly the prior order's denial of leave to amend; and (4) whether and to what extent, if the Court does not correct, reconsider or resolve inconsistencies in the prior order, it should sustain the demurrer currently before the Court